

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Erickson	Team: Team # 3	CCRB Case #: 200714409	☒ Force ☒ Abuse	☒ Discourt. ☐ O.L.	☐ U.S. ☐ Injury
Incident Date(s) Thursday, 09/27/2007 7:00 PM	Location of Incident: Avenue U and West 6th Street		18 Mo. SOL 3/27/2009		Precinct: 62
Date/Time CV Reported Wed, 10/03/2007 11:37 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/03/2007 11:37 AM		

[illegible]

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eduard Nogol	17002	931851	062 PCT
2. SGT Anthony Longobardi	01790	923451	062 PCT
3. Officers			
4. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers stopped the car in which § 87(2)(b) and individuals were occupants.	A . Alleged Victim Uncooperative
B . Officers	Force: Officers pointed their guns at § 87(2)(b) and individuals.	B . Alleged Victim Uncooperative
C . Officers	Abuse: Officers searched § 87(2)(b) and individuals.	C . Alleged Victim Uncooperative
D . Officers	Abuse: Officers searched the car in which § 87(2)(b) and individuals were occupants.	D . Alleged Victim Uncooperative
E . An officer	Discourtesy: An officer spoke obscenely to § 87(2)(b) and individuals.	E . Alleged Victim Uncooperative
F . SGT Anthony Longobardi	Discourtesy: Sgt. Anthony Longobardi spoke obscenely to § 87(2)(b) and individuals.	F . Alleged Victim Uncooperative
G . POM Eduard Nogol	Discourtesy: PO Eduard Nogol spoke obscenely to § 87(2)(b)	G . Alleged Victim Uncooperative

Officer(s)	Allegation	Investigator Recommendation
H . An officer	Discourtesy: An officer spoke obscenely to § 87(2)(b)	H . Alleged Victim Uncooperative

Synopsis

The CCRB received this case via the telephone on October 3, 2007, filed by § 87(2)(b). The CCRB received two duplicate complaints on October 4, 2007, filed by § 87(2)(b) and § 87(2)(b) and a third duplicate complaint on October 8, 2007, filed by § 87(2)(b). The following narrative is based on the statements by § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b). § 87(2)(b) stated that her nephew, § 87(2)(b) was driving home with several friends when their car was stopped by police officers. The officers had their guns pointed at the individuals in the car and directed the individuals in the vehicle to exit and sit on the ground; the car was subsequently searched by the officers. A sergeant arrived at the scene and ordered the arrest of § 87(2)(b) and the other individuals from the vehicle. § 87(2)(b) and the other occupants of the vehicle were taken to the 62nd Precinct where they were told by an officer to, “shut the fuck up.” After several parents of the arrested individuals arrived at the stationhouse, PO Eduard Nogol informed them that the stationhouse was closed and they would have to wait outside. A sergeant came outside and when asked who he was by one of the parents, he replied, “I’m the fucking sergeant.” § 87(2)(b) obtained the name of PO Nogol from the DAT where he was listed as the arresting officer. § 87(2)(b) also stated that the name of the sergeant who walked outside was “Labardi” though she could not remember how she learned this. According to § 87(2)(b)’s statement, officers, with their guns pointed, stopped the vehicle that her son, § 87(2)(b) was in. The officers instructed the individuals to exit the vehicle and upon doing so the officers searched them and the vehicle. § 87(2)(b) stated that Sgt. Anthony Longobardi arrived at the scene and instructed the officers to arrest the individuals of the vehicle. § 87(2)(b) stated that PO Nogol called her daughter, § 87(2)(b) “bitches” and used profanity towards § 87(2)(b) while she was being held at the 62nd Precinct Stationhouse. § 87(2)(b) stated that her daughter, § 87(2)(b) was cursed at while she was inside the 62nd Precinct stationhouse by an officer. § 87(2)(g)

The first attempts to contact the complainants, victims and witness were made on the following days. § 87(2)(b) and § 87(2)(b) were contacted on October 12, 2007. At this time § 87(2)(b) answered and took a message asking § 87(2)(b) to contact the CCRB to speak with an investigator regarding the incident; they did not return the call. § 87(2)(b) and § 87(2)(b) were contacted on October 24, 2007. At this time there was no answer and a message was left asking them to contact the CCRB to speak with an investigator regarding the incident; they did not return the call. § 87(2)(b) and § 87(2)(b) were contacted on October 24, 2007. At this time there was no answer and a message was left asking them to contact the CCRB to speak with an investigator regarding the incident; they did not return the call. § 87(2)(b) and § 87(2)(b) were contacted on October 24, 2007. At this time there was no answer and no answering machine, therefore a message was not left. § 87(2)(b) and § 87(2)(b) were contacted on November 13, 2007. At this time their phone was not in service, therefore a message was not left. An additional contact number from § 87(2)(b)'s arrest report was called on November 19, 2007. At this time an unidentified male stated that neither § 87(2)(b) or § 87(2)(b) were home and a message was left asking them to contact the CCRB to speak with an investigator regarding this incident; they did not return the call. Contact numbers for § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were not provided when the CCRB complaints were filed. Their arrest reports did provided contact addresses but there were no phone numbers listed. A Zaba search as well as a search of AT&T, 411 and White Pages online directories failed to produce any contact numbers, therefore no phone calls were placed to them.

Since their initial calls, the CCRB has mailed two letters to each of the complainants, victims and witness asking them to contact the CCRB to speak with an investigator, and several phone calls have also been made between the dates of October 15, 2007 to November 27, 2007 asking them to contact the CCRB

to speak with an investigator. None of the civilians have contacted the CCRB in response to any of the letters or voice messages.

Without the cooperation of any of the complainants or victims a formal interview could not take place. § 87(2)(g) it is recommended that this case be closed as victim uncooperative.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: